

CIVIL RIGHTS UNIT ATTACKS INQUIRY

Statement Lays Distortion of Fund Collection Facts to Larkin Committee

The Civil Rights Congress accused a joint legislative committee yesterday of having distorted at public hearings the financial accounts the congress had given to the committee voluntarily.

State Senator Edward P. Larkin, committee chairman, denied the charge and said contempt proceedings were being prepared against at least one officer of the congress for failure to produce many of the financial records subpoenaed by the committee.

The accusation was made in a formal statement filed with the committee, which conducted hearings here last month into alleged diversion to Communist uses of money collected by several organizations in behalf of worthy causes.

The Civil Rights Congress, listed by the Attorney General as a subversive organization, was described at the hearings by Bernard Tompkins, committee counsel, as having collected more than \$1,000,000 and diverted much of it to causes other than those for which the money was solicited.

The congress charged yesterday that Mr. Tompkins had failed to produce testimony of any witness "that funds collected by C. R. C. for particular campaigns were diverted to other purposes." The congress statement said Mr. Tompkins had "deceived the press into printing calumnies" by making "glib and false" predictions that he would prove charges that he was later unable to prove. The statement said also that the congress "now maintains, and has always maintained, a full set of books of account audited by a certified public accountant and reconciled with bank records" and that those books had been freely made available to the committee.

Concealing Facts Charged

"The committee not only concealed the facts," the statement alleged. "It deliberately fabricated charges for which there was no shadow of a basis. Thus, the Legislative Committee, set up originally for the purpose of investigating racketeering in the charity and philanthropic fields, has distorted its function into that of an unauthorized un-American Activities Committee, 'investigating' and smearing in typical McCarthy-like manner noncharity civic, political and defense organizations."

Senator Larkin, Republican of Nassau, said he was glad to hear from the congress that it had "a full set of books of accounts" because that was what his committee was trying to get, unsuccessfully so far. He said contempt proceedings were being prepared against Samuel Barron, congress official who served as executive secretary while William L. Patterson, who regularly holds that office, was in jail.

Senator Larkin said Mr. Barron had refused to produce certain records and had then been given "one more chance" by Supreme Court Justice Benjamin Rabin to produce them. Senator Larkin said Mr. Barron had not produced the records yet and that process servers had been unable to find him.